

ASSAM

POLICE AS A STATE OF MIND

By Kaushik Deka

It was the harshest censure of a state's police force in recent times. On April 29, a sessions court in Assam's Barpeta, while granting bail to Gujarat MLA Jignesh Mevani in an alleged case of assault against a woman police officer inside a police vehicle, warned Assam Police against converting India's "hard-earned democracy into a police state". Dismissing the police allegation against Mevani as "manufactured", district and sessions judge Aparesh Chakravarty even linked the case to the ongoing cases of alleged police encounters in Assam and requested the Gauhati High Court to consider whether the issue can be taken up as a PIL "to curb the ongoing police excesses in the state". In response to an appeal filed by the Assam government against the bail order, the High Court stayed some of the observations made by the lower court, including terming the police FIR as manufactured. But a cut had been made in air thickened by a seeming public consensus around a new, hard-edged conception of justice.

It wasn't the first time. The Gauhati High Court has already been hearing a petition against alleged fake encounters in the state. Filed in December last year, the petition claimed that since May 2021, when Himanta Biswa Sarma took charge as the chief minister of Assam, 80 incidents of fake encounters had taken place in the state—leaving 28 people killed, 48 injured. (The numbers have gone up since then. By May 1, 2022, government data put the death toll at 39, and there were 123 injured.) In an affidavit filed before the court in February 2022, the state government said all legal and NHRC (National Human Rights Commission) guidelines were being adhered to in all such cases. But even the regime would gladly own up to the perception of a 'no-nonsense' approach to law-keeping it exudes.

During Sarma's year-long tenure, Assam Police's handling of crime and criminals has displayed a specific pattern—arrested accused often try to flee from police custody and the police team is 'forced to open fire'. Consequently, most accused are either shot dead or left injured. And this crime-busting model seems to have the CM's approval. "Shooting should be the pattern if a criminal tries to escape police custody. If an accused tries to run away, the law allows shooting at... the leg. And if he tries to attack the police team, the police team is bound to fire in self-defence. There is no place of sympathy for people accused of heinous crimes such as rape, drug peddling or cow smuggling," says Sarma. In fact, his stated priorities in the last one year have been tackling crimes against women, curbing drug peddling and cow smuggling and initiating land reforms. Assam Police has emerged as the key instrument in Sarma's plan to rid the state of these social evils—a linchpin of his governance model. With such unequivocal backing from the CM, the police have launched a full-scale mission against alleged rapists, drug peddlers, cow smugglers and the land mafia. Apart from those killed or injured in encounters, nearly 5,000 people accused of these crimes have been arrested in the last one year. In